# MASTER SUPPLY AGREEMENT

This Master Supply Agreement (the "Agreement") is entered into as of September 01, 2023 (the "Effective Date") between Pacific Crest Imports LLC, a Washington limited liability company with offices at 4120 Harbor Way, Suite 300, Tacoma, WA 98421 ("Seller"), and Summit Lighting Group ("Buyer").

## RECITALS

Seller imports and distributes industrial and consumer hardware products. Buyer wishes to purchase such products from Seller from time to time. The parties agree as follows.

## 1. Scope

Seller agrees to sell and Buyer agrees to purchase the products described in each purchase order issued by Buyer and accepted by Seller (each, an "Order") on the terms of this Agreement. Each Order shall identify the products, quantities, unit prices, and requested delivery dates.

## 2. Term

This Agreement commences on the Effective Date and continues for an initial term of two (2) years, renewing automatically for successive one-year periods unless either party gives ninety (90) days written notice of non-renewal.

## 3. Pricing

Unit prices are as stated in the applicable Order or in Seller's then-current price list. Prices are quoted in U.S. dollars, FOB Seller's Tacoma, Washington warehouse, exclusive of freight, insurance, and applicable sales taxes unless otherwise stated.

## 4. Tariff Recovery Charge

In addition to the unit price, Seller shall invoice a Tariff Recovery Charge equal to the duties assessed by U.S. Customs and Border Protection on the products delivered under the applicable Order. Should any portion of such duties later be refunded to Seller, whether through exclusion, reliquidation, or protest, Seller shall credit Buyer's account for the refunded portion attributable to Buyer's Orders within sixty (60) days after Seller's receipt of the refund. Credits shall be documented with reference to the affected invoices.

## 5. Payment

Buyer shall pay each invoice in full within thirty (30) days of the invoice date. Late amounts accrue interest at one percent (1%) per month or the maximum rate permitted by law, whichever is less. Buyer may not set off disputed amounts without Seller's written consent.

## 6. Delivery and Risk of Loss

Seller shall use commercially reasonable efforts to meet requested delivery dates. Title and risk of loss pass to Buyer upon delivery to the carrier at Seller's warehouse.

## 7. Warranty

Seller warrants that products will conform to their published specifications for twelve (12) months from delivery. Seller's sole obligation under this warranty is repair, replacement, or credit at Seller's option.

## 8. Limitation of Liability

Neither party shall be liable for indirect, incidental, or consequential damages. Seller's aggregate liability under this Agreement shall not exceed the amounts paid by Buyer in the twelve months preceding the claim.

## 9. Governing Law

This Agreement is governed by the laws of the State of Washington without regard to its conflict of laws rules. The parties submit to the exclusive jurisdiction of the state and federal courts located in Pierce County, Washington.

## 10. Entire Agreement

This Agreement, together with each accepted Order, is the entire agreement between the parties regarding its subject matter and supersedes all prior proposals and understandings. Amendments must be in writing and signed by both parties.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

Pacific Crest Imports LLC

By: _____
Name: Dana Whitfield
Title: Chief Financial Officer

Summit Lighting Group

By: _____
Name: _____
Title: Authorized Signatory